

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN
JUDICIAL DEPARTMENT

W.P. No.794 of 2025

Aamir Ali

Versus

District Judge, Vehari & others

J U D G M E N T

Date of hearing: 06.04.2026.
Petitioner by: Mr. Akbar Ali Awan, Advocate.
Respondents by: Rana A. D. Kamran, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through the instant petition, the petitioner has called in question the validity of the concurrent judgments and decrees dated 12.10.2024 and 18.12.2024, passed by the learned Judge Family Court and District Judge, Vehari, respectively, whereby the suit for recovery of dower instituted by respondent No.3 was decreed.

2. Briefly, the marriage between the parties was solemnized on 18.04.2011. According to the respondent No.3/plaintiff, at the time of Nikah, dower was fixed in the sum of Rs.5,000/-, 05 tolas of silver ornaments, and 10 tolas of gold ornaments as reflected in columns No.13, 14 and 16 of the Nikahnama. It was the case of respondent No.3 that the said dower remained unpaid and, after dissolution of marriage, she became entitled to its recovery. The petitioner contested the suit on the plea that only Rs.5,000/- was fixed and paid at the time of Nikah, while the remaining entries were alleged to be fictitious and the result of signatures obtained on blank papers. The learned trial court, after framing issues, recording evidence and hearing arguments of both sides, decreed the suit, which was maintained in appeal. Hence, instant petition.

3. Learned counsel for the petitioner contends that the findings recorded by the Courts below are the result of misreading and non-reading of material available on record and suffer from arbitrariness, having been rendered mechanically on the basis of surmises, conjectures and fanciful considerations. He contends that the Courts below gravely erred in decreeing recovery of 10 tolas of gold ornaments, despite the fact that as per column No.16 of the Nikahnama, the value thereof had been fixed at Rs.500,000/-, and therefore, the grant of gold itself is beyond the terms of the alleged settlement between the parties and unsustainable in law. In support, he has referred to Mst. Fakhra Jabeen and others v. Wasif Ali and others (PLD 2026 Supreme Court 20).

4. Conversely, learned counsel for the respondent No.3 contends that the impugned judgments and decrees are well-reasoned, based on proper appreciation of evidence, and do not suffer from any illegality, misreading or non-reading of record so as to warrant interference in constitutional jurisdiction, particularly in the presence of concurrent findings of fact. He argues that the Nikahnama, being a public document, carries a presumption of correctness which the petitioner failed to rebut despite admitting his signatures thereon and not challenging its entries before any competent forum, and that the Courts below have rightly treated the dower as composite, with the mention of value in column No.16 being merely indicative and not substitutive of the gold ornaments itself. In support, he has relied upon Mureed Abbas v. Additional District Judge, Tounsa Sharif District D.G. Khan and 2 others (2010 CLC 405) and Mst. Zaib un Nisa and others v. Additional District Judge, Taxila and others (2025 CLC 1048).

5. Arguments heard. Available record perused.

6. The controversy in the instant petition revolves around the correctness of the concurrent findings recorded by the Courts below regarding the fixation, nature and recoverability of dower as reflected in the Nikahnama, and more particularly the true import

and legal effect of the entry contained in column No.16 thereof. The case of the respondent/plaintiff is that the dower was fixed in multiple forms, i.e., cash, silver ornaments and gold ornaments, all of which remained unpaid and thus became recoverable upon dissolution of marriage, whereas, the petitioner disputes the very incorporation of the entries relating to silver and gold, alleging the same to be fictitious, and further contends that even if such entry is assumed to be correct, the mention of value in respect of 10 tolas gold restricts the claim to a fixed monetary amount rather than the gold itself. In this backdrop, the principal questions requiring determination are: (i) whether the entries in the Nikahnama stand proved and remain unrebutted; (ii) whether the dower in question is to be treated as composite and cumulative in nature, and (iii) whether the entry in column No.16 is to be construed as conferring an independent right to recover gold ornaments or merely the value specified therein.

7. Record shows that the respondent/plaintiff produced a certified copy of the Nikahnama, which is a public document carrying a presumption of correctness. The petitioner, while appearing as his own witness, admitted his signatures on the Nikahnama. He further conceded that he had received a copy thereof after marriage and that he had never challenged its entries before any competent forum. The respondent also examined witnesses of the Nikah, including a signatory witness and the Wakeel of the bride, who supported her stance. On the contrary, the petitioner failed to produce any cogent or convincing evidence to substantiate his plea that the entries relating to silver and gold were fabricated or subsequently inserted. Even his own witness admitted lack of knowledge regarding the terms settled at the time of Nikah.

8. It is also significant to observe that in matters pertaining to dower, the burden to disprove the contents of the Nikahnama squarely lies upon the husband once execution thereof is admitted. The Nikahnama is not merely a ceremonial document but a

statutory record prepared under the relevant law, and its entries regarding dower carry substantial evidentiary weight. Any plea alleging fabrication, interpolation or obtaining of signatures on blank papers is a serious allegation which must be proved through cogent, convincing and confidence-inspiring evidence. In the present case, apart from making a bald assertion, the petitioner neither initiated any independent proceedings for cancellation or correction of the Nikahnama nor examined any official from the Nikah Registrar's office to substantiate the alleged irregularity. Such omission assumes importance and gives rise to an adverse inference against him under the settled principles of evidence. Consequently, the defence raised by the petitioner appears to be an afterthought aimed at evading a lawful obligation, and has rightly been discarded by the Courts below.

9. In these circumstances, the presumption attached to the Nikahnama remained unrebutted. It is a settled principle that where a party admits execution of a document and does not take timely steps to challenge its contents before the appropriate forum, a heavy burden lies upon him to dislodge the presumption of truth, which burden cannot be discharged through bald assertions. Both the Courts below have, therefore, rightly concluded that the dower was fixed as recorded in the Nikahnama and that the same remained unpaid. No misreading or non-reading of evidence could be pointed out in this regard.

10. The next aspect pertains to the nature of the dower. The entries in the Nikahnama reveal that the dower consisted of cash, silver ornaments and gold ornaments. The legal position is that dower may validly be fixed in multiple forms, and such components are independent and cumulative unless a contrary intention is clearly established. There is nothing on record to suggest that any of these components was contingent upon the other. The concurrent findings treating the dower as composite in nature are, therefore, in consonance with law.

11. The principal contention raised by the petitioner relates to the entry in column No.16 of the Nikahnama, wherein 10 tolas gold is mentioned along with its stated value of Rs.500,000/-, with the argument that the said entry restricts the obligation to a fixed monetary amount instead of gold ornaments. A careful examination of the entry, however, shows that the substantive component is the specification of 10 tolas gold, while the mention of value appears to be merely descriptive in nature without any express stipulation of substitution or discharge of liability through payment of money. The legal position in this regard has been authoritatively clarified by the Hon'ble Supreme Court in Mst. Fakhra Jabeen and others v. Wasif Ali and others (PLD 2026 Supreme Court 20), wherein it has been held that entries in different columns of the Nikahnama must be interpreted on the basis of the true intention of the parties, and that dower may validly consist of multiple independent and co-existing components, including cash and property, unless a clear intention of substitution is established. In the present case, there is nothing on record to suggest that the gold mentioned in column No.16 was intended to be relinquished upon payment of its assessed value or that the same was agreed as an alternative to money; rather, the only reasonable interpretation consistent with the said principle is that 10 tolas of gold was intended to be an independent component of dower, with the stated value serving merely as an indicative valuation, and therefore the Courts below rightly treated the gold ornaments as a substantive and enforceable obligation.

12. The Courts below, while rightly decreeing the claim, did not undertake a detailed examination of this aspect and proceeded to grant recovery of gold ornaments or, in the alternative, their value. Although this omission in reasoning is noted, it does not vitiate the ultimate conclusion, as the grant of alternative relief is otherwise supported by settled principles. It has consistently been held that where recovery of specified articles such as gold ornaments is decreed, the decree-holder, in the event of non-delivery, is entitled

to their market value so as to ensure effective satisfaction of the decree. Such valuation is to be determined at the time of execution, keeping in view prevailing market rates, so that the decree is not rendered illusory.

Thus, the proper interpretation of column No.16 is that 10 tolas of gold constitutes an independent and enforceable component of dower, and the mention of Rs.500,000/- is not a restrictive substitute but merely an indicative valuation. In case the gold is not delivered, the respondent shall be entitled to recover its market value at the time of execution in accordance with law. Reliance is placed upon Mst. Ayesha Shaheen v. Khalid Mehmood and another (2013 SCMR 1049) and Haji Muhammad Nawaz v. Samina Kanwal and others (2017 SCMR 321).

13. The concurrent findings recorded by the Courts below are based on a proper and lawful appreciation of the entire evidence on record and are neither arbitrary nor perverse, nor do they suffer from any jurisdictional defect warranting interference in constitutional jurisdiction. It is by now well-settled that this Court, while exercising jurisdiction under the Constitution, does not act as a Court of appeal to reappraise or re-evaluate evidence and interfere with concurrent findings of fact only in exceptional circumstances where such findings are demonstrated to be perverse, based on misreading or non-reading of material evidence, or otherwise vitiated by a jurisdictional defect. Mere possibility of a different view or alternative appreciation of evidence is not sufficient to dislodge concurrent findings of fact recorded by the Courts below.

14. For what has been discussed above, this Court is of the considered view that the concurrent findings regarding fixation and non-payment of dower are legal and do not call for interference. The petition, being devoid of merit, is **dismissed**, with the clarification that the decree insofar as it relates to 10 tolas of gold shall be construed to mean that the respondent No.3 is entitled to the said gold as an independent component of dower, and in case of

non-delivery, to its prevailing market value at the time of execution.
No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.